

STATE OF NEW YORK

6438--B

2025-2026 Regular Sessions

IN SENATE

March 13, 2025

Introduced by Sens. COMRIE, FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to promoting consumer choice by requiring manufacturers of digital electronic equipment to provide retail sellers with a one through ten repair score that will be displayed to consumers at point of sale

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "The Electron-
2 ics Repair Scores Act".

3 § 2. Subdivision 1 of section 399-nn of the general business law is
4 amended by adding two new paragraphs (s) and (t) to read as follows:

5 (s) "Repair score" or "score" means a one through ten score calculated
6 by the manufacturer based on the repair scoring criteria developed by
7 the attorney general.

8 (t) "Detailed score" means the information regarding the calculation
9 and meaning of the repair score as defined by the scoring criteria
10 developed by the attorney general.

11 § 3. Subdivision 2 of section 399-nn of the general business law, as
12 amended by chapter 48 of the laws of 2023, is amended to read as
13 follows:

14 2. Requirements. (a) An original equipment manufacturer shall make
15 available to any independent repair provider and owner of digital elec-
16 tronic equipment manufactured by or on behalf of or sold by such
17 original equipment manufacturer, on fair and reasonable terms, any
18 documentation, parts, and tools required for the diagnosis, maintenance,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 or repair of such digital electronic equipment and parts that are manu-
2 factured for the first time, and first sold or used in New York on or
3 after July first, two thousand twenty-three. Such documentation, parts,
4 and tools shall be made available either directly by an original equip-
5 ment manufacturer or via an authorized repair provider. An original
6 equipment manufacturer who, in the regular course of business, offers to
7 an owner the services of diagnosis, maintenance or repair of its own
8 digital electronic equipment, and who does not have an arrangement
9 described in paragraph (a) of subdivision one of this section with an
10 unaffiliated individual or business, shall be considered an authorized
11 repair provider with respect to such equipment.

12 (b) (i) For digital electronic equipment that is sold or used in this
13 state, an original equipment manufacturer shall make available to any
14 retail sellers and the attorney general the repair score and detailed
15 score for such digital electronic equipment, inclusive of any updates to
16 information.

17 (ii) Original equipment manufacturers shall print the repair score and
18 detailed score on packaging of such digital electronic equipment, the
19 score shall include the logo representation of the score as developed by
20 the attorney general.

21 (iii) Original equipment manufacturers shall clearly display repair
22 scores for such products on their website product listing pages, as well
23 as make publicly available detailed scores to all potential purchasers
24 on each product listing page.

25 (iv) Scoring criteria will be determined by the attorney general,
26 which shall periodically update such criteria, and a logo representation
27 of scores. Scoring criteria shall apply only to digital electronic
28 equipment manufactured for the first time, and first sold or used in New
29 York on or after one year from the effective date of this paragraph, and
30 which are already subject to widely accepted repairability index stand-
31 ards in other jurisdictions, including international standards. Scoring
32 criteria may include, but is not limited to: the free and public avail-
33 ability of technical documents regarding repair and maintenance of the
34 product; ease of disassembly of the product; availability of tools for
35 repair and maintenance of the product; availability of spare parts for
36 the product; length of software support by the manufacturer of the
37 product; the repair options available for the equipment; and other
38 criteria considered by widely accepted repairability index standards in
39 other jurisdictions. The attorney general shall make every effort to
40 incorporate the standards from existing repairability index standards
41 implemented in the U.S. and internationally, to avoid duplicative or
42 inconsistent regulatory standards, unless there are compelling reasons
43 to adopt new or differing standards.

44 § 4. This act shall take effect one year after it shall have become a
45 law.